

25NNCV02422 25NNCV02422

County: los-angeles

Division: Civil Law and Motion

Department: X

Hearing date: 2026-07-20

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2CX%2C07%2F20%2F2026

Source SHA-256: 80a664437476f6d83d059f514408ac7dacef7268fcbf42c23ce6b73525fe668d

Case Number: 25NNCV02422 Hearing Date: July 20, 2026 Dept: X

#13 - A. Z. vs ERIC LAWRENCE KUNG, PSYD, et al.

MOTION

TO COMPEL FURTHER RESPONSES TO INTERROGATORIES (9707) AND PRODUCTION DEMANDS (2602)

Plaintiff's Motion to Compel Further Discovery Responses to Requests for Production (Set One) [2602] and Motion to Compel Further Discovery Responses to Interrogatories (Set One) [9707] were originally set for hearing on May 14, 2026.

On May 14, 2026, the Court continued both motions to July 20, 2026. The Court set an Informal Discovery Conference for June 12, 2026, and ordered further meet-and-confer efforts and a joint IDC submission identifying the requests still at issue. (5/14/26 Minute Order.)

Defendant served verified supplemental responses to the requests for production on May 1, 2026. Defendant also served verified supplemental responses to the special interrogatories and form interrogatories on May 1, 2026.

As to the requests for production, Defendant's supplemental filing states that, by the June 5, 2026 meet and confer and joint IDC submission, the singular issue presented for the Court's review had been narrowed to Defendant's supplemental statement of compliance. Defendant further represented that, at the June 12, 2026 IDC, the Court concluded no further supplemental response was necessary because the supplemental statement of compliance superseded the earlier statement.

As to the interrogatories, Defendant's supplemental filing states that Plaintiff's May 7, 2026 reply narrowed the disputed issues to Special Interrogatory Nos. 3, 4, 9, 20, 24, and 30, and Form Interrogatory Nos. 15.1 and 16.2 through 16.6. Defendant further states that, during the June 5, 2026 meet and confer, Plaintiff withdrew her objections to Special Interrogatory Nos. 4, 20, 24, and 30, Defendant agreed to further supplement Form Interrogatory No. 15.1 and Special Interrogatory No. 3, and the remaining disputed issues were Special Interrogatory No. 9 and Form Interrogatory Nos. 16.2 through 16.6. Defendant also represents that, at the June 12, 2026 IDC, the Court indicated a further supplemental response to Special Interrogatory No. 9 was warranted, but that the Form Interrogatory No. 16 series might not be ripe until Plaintiff disclosed injuries in discovery and submitted to deposition. Defendant served finalized verified supplemental responses on July 7, 2026.

Tentative Ruling

Plaintiff's Motion to Compel Further Discovery Responses to Requests for Production (Set One) [2602] is DENIED AS MOOT.

Plaintiff's Motion to Compel Further Discovery Responses to Interrogatories (Set One) [9707] is DENIED AS MOOT as to Form Interrogatory No. 15.1 and Special Interrogatory Nos. 3, 4, 9, 20, 24, and 30.

Plaintiff's Motion to Compel Further Discovery Responses to Interrogatories (Set One) [9707] is DENIED WITHOUT PREJUDICE as to Form Interrogatory Nos. 16.2, 16.3, 16.4, 16.5, and 16.6.

Requests for Production Motion

There appears to no longer be any live dispute requiring a further order on the requests for production.

Defendant served verified supplemental responses on May 1, 2026. Although Plaintiff's May 7 reply maintained that sanctions and a privilege-log issue remained, the dispute later presented at the IDC was narrowed to Defendant's supplemental statement of compliance. The record submitted in Defendant's supplemental opposition states that, at the June 12 IDC, the Court determined no further supplemental response was necessary because the supplemental statement superseded the earlier one.

The motion as to requests for production is therefore DENIED as moot.

Interrogatories Motion

The same is substantially true of the interrogatories motion, but the remaining issues require different treatment.

The disputes identified in Plaintiff's May 7 reply were later narrowed through the June 5 meet and confer and the June 12 IDC. Plaintiff withdrew objections as to Special Interrogatory Nos. 4, 20, 24, and 30. Defendant agreed to further supplement Form Interrogatory No. 15.1 and Special Interrogatory No. 3, and, following the IDC, also agreed to further supplement Special Interrogatory No. 9. Defendant then served finalized verified supplemental responses on July 7, 2026.

As to Form Interrogatory Nos. 16.2 through 16.6, the record submitted in Defendant's supplemental opposition states that the Court indicated those responses "may be ripe for supplementation after Plaintiff" provides discovery concerning her alleged injuries and sits for deposition. Thus, no further response will be ordered as to the Form Interrogatory No. 16 series at this time.

The motion as to interrogatories is, therefore, DENIED as moot as to Form Interrogatory No. 15.1 and Special Interrogatory Nos. 3, 4, 9, 20, 24, and 30, and DENIED WITHOUT PREJUDICE as to Form Interrogatory Nos. 16.2, 16.3, 16.4, 16.5, and 16.6.

Sanctions

Plaintiff argues sanctions remain appropriate because Defendant served supplemental responses only after the motions were filed and because Plaintiff incurred fees in bringing the motions. Defendant argues it acted in good faith, that extensions were granted, that supplemental responses and document production were promised and served, and that the remaining disputes were substantially narrowed through further meet-and-confer efforts and the IDC. In its supplemental opposition to the RFP motion, Defendant also requested \$1,260 in monetary sanctions.

Here, the Court finds substantial justification and further finds that an award of monetary sanctions would be unjust. Plaintiff's requests for monetary sanctions are denied. Defendant's request for monetary sanctions is also denied. (See *Mattco Valley Forge v. Arthur Young & Co.* (1990) 223 Cal.App.3d 1429, 1437 [court's discretion to deny sanctions upon mixed results].)

Unless waived by the parties, Moving Party is to give notice.